



United States
Attorney's Office
Eastern District of Washington



Coeur d'Alene Physician Found Guilty in Telemarketing Medicare Fraud Conspiracy

Monday, November 17, 2025

For Immediate Release

U.S. Attorney's Office, Eastern District of Washington

Yakima, Washington – United States Attorney Pete Serrano announced that on September 29, 2025, a federal jury found Dr. David Antonio Becerril, age 69, of Coeur d'Alene, Idaho, and formerly of Selah, Washington, guilty of sixteen counts of conspiracy, fraud, and false statements in connection with Dr. Becerril's participation in a telemarketing health care fraud scheme. Chief United States District Judge Stanley A. Bastian presided over the trial, which began on September 22, 2025. At sentencing, which is set for January 20, 2026, Dr. Becerril faces a maximum term of 20 years in prison.

According to evidence presented at trial and court documents, between February 2018 and September 2019, Dr. Becerril, a licensed Washington physician, participated in a scheme and conspiracy to obtain millions of dollars by falsely billing Medicare for medically unnecessary genetic tests and durable medical equipment, including back, knee, shoulder, and ankle braces. The evidence at trial showed that Dr. Becerril signed false and fraudulent orders for genetic tests and braces for elderly Medicare beneficiaries that Dr. Becerril had never seen, spoken to, heard of, or had any contact with whatsoever, and which included deceased patients as well as elderly patients who had no limbs for the braces they were prescribed by Dr. Becerril.

The evidence presented at trial also detailed the scheme and involvement of Real Time Physicians, LLC (Real Time) whose telemarketers contacted the elderly Medicare beneficiaries and obtained their personal information and beneficiary numbers. Dr. Becerril, using an internet portal provided by Real Time, certified false and fraudulent prescriptions for braces and genetic tests for the beneficiaries, signing prescriptions and other documents prepared by Real Time that contained false medical information and made it appear that he was treating the beneficiaries. Real Time then sold the phony prescriptions to genetic testing labs and durable medical equipment companies, who then billed Medicare, sharing the proceeds with Real Time. Real Time paid Dr. Becerril \$20 for each phony prescription he falsely certified to be used to fraudulently bill Medicare.

According to the evidence presented at trial, Medicare was billed over \$3.2 million for fraudulent prescriptions signed by Dr. Becerril, who never once spoke to, treated, or interacted with a patient, and paid out more than \$1.3 million before the fraud was uncovered. Dr. Becerril reviewed the Real Time prescriptions for, on average, 26 seconds before signing them and falsely attesting to their medical necessity, and that he never once declined to sign a Real Time prescription for Medicare beneficiaries with which he had no contact and had never heard of. Dr. Becerril was paid over \$37,000 by Real Time for his false certifications as a medical doctor on hundreds of prescriptions for DME and genetic testing, which equated to being paid thousands of dollars per hour for his participation in the fraud scheme over approximately 19 months.

In June 2022, the Department of Justice announced that Marc Sporn, 61, of Delray Beach, Florida, the former owner of Real Time and other similar companies, was sentenced to 14 years in federal prison for his role in the conspiracy to fraudulently bill Medicare.

"By participating in this telemedicine fraud scheme, Dr. Becerril placed his own personal financial gain before the legitimate medical needs of patients, violating the trust of Medicare enrollees and wasting valuable taxpayer dollars," said Acting Special Agent in Charge Jeffrey C. McIntosh of the U.S. Department of Health and Human Services Office of Inspector General (HHS-OIG). "HHS-OIG is proud to work alongside our federal law enforcement partners to investigate and hold accountable medical providers who defraud taxpayer-funded health care programs."

"Medicare fraud is fraud against the American taxpayer. This office will continue to vigorously investigate and prosecute those who would attempt to line their own pockets by defrauding the federal healthcare programs relied upon by our senior citizens, our active-duty military, and our veterans," stated U.S. Attorney Pete Serrano. "This fraud is especially egregious as it was perpetrated by a medical doctor betraying his oath to do no harm. I want to thank our law enforcement partners, in particular the phenomenal work done for years on this case by multiple special agents with the U.S. Department of Health and Human Services, Office of Inspector General, and without whom we would not have been able to bring Dr. Becerril to justice."

The case was investigated by Health and Human Services Office of Inspector General. This case was prosecuted by Assistant United States Attorneys Courtney R. Pratten and Tyler Tornabene and Health Care Fraud Contractor Echo Fatsis.

United States v. David A. Becerril, 1:23-CR-02029-SAB

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USAWAE.Media@usdoj.gov

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